

[1 EDW. 8. & *Dunstable Gas and Water* [Ch. lxiii.]
I GEO. 6.] Act, 1937.



CHAPTER lxiii.

An Act to make new provisions as to the capital of the Dunstable Gas and Water Company to extend the limits of the Company for the supply of gas to authorise the construction of additional waterworks and the raising of additional capital and for other purposes. [6th July 1937.] A.D. 1937.

WHEREAS the Dunstable Gas and Water Company (in this Act called "the Company") were incorporated by the Dunstable Gas and Water Act 1871 and were by that Act authorised to construct works and to supply gas and water to certain parishes in the county of Bedford within the limits prescribed by that Act : 34 & 35 Vict. c. xxiv.

And whereas further powers were conferred on the Company by the Dunstable Gas and Water Act 1912 the Dunstable Gas (Charges) Order 1921 the Dunstable Gas Order 1926 the Dunstable Water Order 1926 confirmed by the Ministry of Health Provisional Orders Confirmation (No. 8) Act 1926 and the Dunstable Gas Order 1936 : 2 & 3 Geo. 5. c. xiv. 16 & 17 Geo. 5. c. lvii.

And whereas a statement of the share and loan capital which the Company are authorised to issue and borrow and which the Company have issued and borrowed under the powers in that behalf contained in the before-mentioned Acts and Orders is given in the First Schedule to this Act :

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— And whereas it is expedient that the ordinary capital issued by the Company should be subdivided and that the preference capital so issued should be consolidated and converted and that the Company should be authorised to raise additional capital and to borrow further moneys for the purpose of their gas and water undertakings and that such other financial provisions should be made as are contained in this Act :

And whereas it is expedient that the limits of the Company for the supply of gas should be extended so as to include further areas in the said county as is by this Act provided :

And whereas the Company have with a view to meeting the demand for gas and water within the area supplied by them acquired certain lands for an extension of their gasworks and for the construction of a service reservoir and works and it is expedient that the acquisition of the said lands should be confirmed and that the Company be authorised to extend their said gasworks and to erect such reservoir and works :

And whereas it is expedient to empower the Company to construct in the borough of Dunstable in the said county of Bedford the railway sidings by this Act authorised :

And whereas it is expedient that such further powers should be conferred on the Company and such other provisions should be made as are contained in this Act :

And whereas a plan and section showing the lines situation and level of the reservoir and works authorised by this Act and a plan and section showing the lines situation and levels of the sidings authorised by this Act and the lands which may be taken for the respective purposes thereof and also books of reference to the plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of such lands have been deposited with the clerk of the county council of the administrative county of Bedford and are hereinafter respectively referred to as the deposited plan section and book of reference :

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And whereas the objects of this Act cannot be attained without the authority of Parliament: A.D. 1937.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

1. This Act may be cited as the Dunstable Gas and Water Act 1937. Short title.

2.—(1) The following enactments (so far as the same are applicable to the purposes and are not inconsistent with or varied by the provisions of this Act) are hereby incorporated with and form part of this Act (namely):— Incorporation of Acts.

The Companies Clauses Consolidation Act 1845 except the provisions thereof with respect to the conversion of borrowed money into capital; 8 & 9 Vict. c. 16.

Part I (relating to cancellation and surrender of shares) Part II (relating to additional capital) and Part III (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts; 26 & 27 Vict. c. 118.

The Gasworks Clauses Act 1847; 10 & 11 Vict. c. 15.

The Gasworks Clauses Act 1871; 34 & 35 Vict. c. 41.

The Waterworks Clauses Act 1847; 10 & 11 Vict. c. 17.

The Waterworks Clauses Act 1863; 26 & 27 Vict. c. 93.

The Railways Clauses Consolidation Act 1845 and Part I (relating to construction of a railway) of the Railways Clauses Act 1863; 8 & 9 Vict. c. 20.

The Lands Clauses Acts. 26 & 27 Vict. c. 92.

(2) In the application to the Company of the Companies Clauses Consolidation Act 1845 section 116 of that Act shall be read and have effect as if the words "preceding year" were substituted therein for the words "preceding half-year."

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(3) In the application to the Company of the Waterworks Clauses Act 1847 section 44 of that Act shall be read and have effect as if the words "with" the consent in writing of the owner or reputed owner "of any such house or of the agent of such owner" were omitted therefrom.

Interpreta-
tion.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings And—

"The Company" means the Dunstable Gas and Water Company;

"The gas undertaking" means the gas undertaking of the Company as from time to time authorised;

"The water undertaking" means the water undertaking of the Company as from time to time authorised;

"The undertaking" means the gas undertaking and the water undertaking;

"The gas limits" means the limits within which the Company are from time to time authorised to supply gas;

"The water limits" means the limits within which the Company are from time to time authorised to supply water;

"Gas capital" means capital authorised raised or issued for the purpose of the gas undertaking;

"Water capital" means capital authorised raised or issued for the purpose of the water undertaking;

"The prescribed date" means the first day of January one thousand nine hundred and thirty-eight;

"The directors" means the directors of the Company;

"The Act of 1871" means the Dunstable Gas and Water Act 1871; and

"The Act of 1912" means the Dunstable Gas and Water Act 1912.

SUBDIVISION AND CONVERSION OF CAPITAL.

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4. As from the prescribed date each ordinary share of ten pounds in the gas capital and in the water capital shall be subdivided into ten ordinary shares of one pound and each ordinary share of two pounds in the gas capital shall be subdivided into two ordinary shares of one pound.

Subdivision
of ordinary
shares.

5. As from the prescribed date the following preference shares in the gas capital that is to say the seven hundred and two "C" preference shares of ten pounds each entitled to a preferential dividend of five per centum per annum the two hundred and ninety-eight "C" preference shares of ten pounds each entitled to a preferential dividend of six per centum per annum the two hundred and fifty new preference shares of ten pounds each entitled to a preferential dividend of seven and a half per centum per annum the seven hundred and thirty-three new preference shares of ten pounds each entitled to a preferential dividend of six per centum per annum and the one thousand three hundred and eighty-four new preference shares of ten pounds each entitled to a preferential dividend of five per centum per annum shall be converted and consolidated into thirty-six thousand nine hundred and eighty-two pounds of preference stock bearing a fixed preferential dividend of five per centum per annum to be styled five per centum gas preference stock.

Conversion
of preference
shares (gas).

6. As from the prescribed date the following shares in the water capital that is to say the fifty shares of ten pounds each entitled to a preferential dividend of seven and one-half per centum per annum the four hundred and ninety-eight shares of ten pounds each entitled to a preferential dividend of six per centum per annum and the one thousand one hundred and forty-six shares of ten pounds each entitled to a preferential dividend of five per centum per annum shall be converted into eighteen thousand one hundred and eighty-six pounds of preference stock bearing a fixed preferential dividend of five per centum per annum to be styled five per centum water preference stock.

Conversion
of preference
shares
(water).

A.D. 1937.

Division
of stock
among
holders of
preference
shares.

7. The amount of the preference stocks to be issued by the Company in place of preference shares under the foregoing provisions of this Act shall be divided among and vested in the several persons registered on the prescribed date as holders of the said shares or their executors administrators or assigns according to the following scale :—

For every preference share of ten pounds in the gas capital entitled to a preferential dividend of seven and one-half per centum per annum.	Fifteen pounds of five per centum gas preference stock.
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For every preference share of ten pounds in the gas capital entitled to a preferential dividend of six per centum per annum.	Twelve pounds of five per centum gas preference stock.
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For every preference share of ten pounds in the gas capital entitled to a preferential dividend of five per centum per annum.	Ten pounds of five per centum gas preference stock.
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For every preference share of ten pounds in the water capital entitled to a preferential dividend of seven and one-half per centum per annum.	Fifteen pounds of five per centum water preference stock.
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For every preference share of ten pounds in the water capital entitled to a preferential dividend of six per centum per annum.	Twelve pounds of five per centum water preference stock.
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For every preference share of ten pounds in the water capital entitled to a preferential dividend of five per centum per annum.	Ten pounds of five per centum water preference stock.
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Creation
and regis-
tration of
substituted
stocks.

8. As from the prescribed date there shall be created by virtue of this Act such nominal amounts of gas and water preference stocks respectively as shall be necessary for the purpose of carrying into effect

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the conversion aforesaid and the amounts of such stocks to which the holders of preference shares become entitled by virtue of this Act in substitution for preference shares shall be vested in such holders as from the date of conversion and shall be registered forthwith in their respective names in the books of the Company. A.D. 1937.

9. All preference stocks registered in the names of holders of preference shares of the Company pursuant to the foregoing provisions of this Act shall after registration be held in the same rights on the same trusts and be subject (so far as is consistent with these provisions) to the same powers provisions charges and liabilities as those in upon or subject to which the preference shares for which the preference stock is substituted were held immediately before the prescribed date and shall be dealt with applied and disposed of accordingly and so as to give effect to and not revoke any agreement deed or other instrument or any testamentary disposition disposing of or affecting any such preference shares and trustees executors or administrators and all other holders in any representative or fiduciary capacity are hereby expressly authorised and required to accept any preference stock so registered in their names in substitution for the preference shares held by them and may subject to the provisions of this Act retain pursuant to the provisions of this Act dispose of or otherwise deal with the same as fully and freely in all respects as they might have retained disposed of or otherwise dealt with such preference shares. Trustees to accept substituted stocks.

10. The Company shall call in and cancel all certificates of ordinary and preference shares and shall issue free of charge in exchange for those certificates to the holders of the ordinary shares new certificates of such shares as subdivided and to the holders of the preference shares certificates of preference stock of the amounts to which those holders are by this Act respectively entitled Such new certificates shall be issued free of charge but no holder shall be entitled to a new certificate until he shall have delivered to the Company to be cancelled the existing certificate for which a new certificate is to be substituted or shall Exchange of certificates.

A.D. 1937. have proved to the reasonable satisfaction of the directors the loss or destruction of the certificate and shall have given to the Company an indemnity against any and every claim in respect of such lost or destroyed certificate :

Provided that until the issue of such new certificates the holders of the existing certificates of ordinary shares shall have and possess the same rights and privileges as if the existing certificates were certificates for the shares as subdivided and the holders of the existing certificates of preference shares shall (according to the amount of preference stock to be issued in substitution for the preference shares to which such certificates relate) have and possess the same rights and privileges as if such existing certificates were certificates for the amounts of such preference stock so to be issued. If any holder neglects or omits to send or deliver to the Company his existing certificate for the period of nine months after notice in writing sent by post to the address of such holder appearing in the shareholders' address book of the Company the Company may retain any dividend declared or payable upon or in respect of the subdivided ordinary shares or of the preference stock to which he is entitled until such existing certificate is delivered to the Company or is proved to the reasonable satisfaction of the directors to have been lost or destroyed and until such indemnity as aforesaid is given.

Transfers
of existing
preference
shares.

11. All transfers or other dispositions of any preference shares to be converted by virtue of this Act as existing up to such conversion shall after such conversion and notwithstanding this Act be valid and have due effect given to them respectively as transfers or dispositions of the respective amounts of preference stock which the preference shares thereby expressed to be transferred or disposed of represent or which are substituted for the same under the provisions of this Act although the instrument transferring or disposing thereof shall describe the same by the name or denomination which the preference shares transferred or disposed of had before such conversion and the bequest of or any covenant or provision of any deed or agreement relating to any such preference shares converted by virtue of this Act shall be held to relate to the nominal amount

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of preference stock which is substituted for such A.D. 1937.
preference shares by virtue of this Act. —

ADDITIONAL CAPITAL AND FINANCIAL PROVISIONS.

12.—(1) The Company may from time to time raise by the creation and issue of ordinary shares or stock or of preference shares or stock or wholly or partially by one or more of such modes respectively additional capital to such amount as shall be sufficient to produce after taking into account premiums and discounts (if any) which may be obtained or allowed on the issue thereof the sum of two hundred thousand pounds and any sum so raised shall be applied to the purposes of the gas undertaking being purposes to which capital is properly applicable.

Additional
capital for
gas and
water
under-
takings.

(2) The Company may from time to time raise by the creation and issue of ordinary shares or stock or of preference shares or stock or wholly or partially by one or more of such modes respectively additional capital to such amount as shall be sufficient to produce after taking into account premiums and discounts (if any) which may be obtained or allowed on the issue thereof the sum of one hundred thousand pounds and any sum so raised shall be applied to the purposes of the water undertaking being purposes to which capital is properly applicable.

13. Except as by this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company (as subdivided or converted under the provisions of this Act) of the same class or description and the new stock or shares were shares or stock in that capital The capital in new shares or stock so created shall form part of the capital of the Company.

Incidents
of new
capital.

14. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any shares or stock issued under or by virtue of the powers conferred by this Act to which a preferential dividend is assigned.

Votes in
respect of
preference
capital.

A.D. 1937.

Limit of dividend.

15. The Company shall not in any year pay out of their profits any larger dividend on the additional gas capital or the additional water capital to be raised under the powers of this Act than seven pounds in respect of every one hundred pounds actually paid up of so much of such capital as may be issued as ordinary capital or six pounds in respect of every one hundred pounds actually paid up of so much of such capital as may be issued as preference capital.

New capital to be sold by auction or tender.

16. Except as by this Act otherwise provided all ordinary shares or stock and preference shares or stock forming part of the additional capital by this Act authorised to be raised shall be issued if shares or stock in the gas capital in accordance with the provisions of section 8 of the Dunstable Gas Order 1926 or if shares or stock in the water capital of article 11 of the Dunstable Water Order 1926.

Issue of shares or stock in water capital. 24 & 25 Geo. 5. c. 28.

17. The provisions of section 1 of the Gas Undertakings Act 1934 with the substitution of the words "the Minister of Health" for the words "the Board of Trade" and the words "the Minister" for the words "the Board" wherever they occur in the said section shall extend and apply to the issue by the Company of any ordinary shares or stock or any preference shares or stock in the water capital.

Power to pay underwriting commission on issue of water capital.

18. The provisions of subsections (1) and (3) of section 3 of the Gas Undertakings Act 1934 shall extend and apply to the payment of a commission on the issue of any ordinary shares or stock or of any preference shares or stock in the water capital. Provided that the words "the Minister of Health" shall be substituted for the words "the Board of Trade" in paragraph (a) of subsection (1) of the said section.

Power to borrow.

19.—(1) The Company may without further or other authority borrow on mortgage of the gas undertaking in respect of the gas capital raised by them before the passing of this Act any sum or sums not exceeding in the whole (inclusive of the sums already borrowed by them on mortgage of such undertaking and outstanding at the date or respective dates on which the Company exercise the powers of this subsection) the sum of twenty-eight thousand nine hundred and two pounds.

(2) The Company may without further or other authority borrow on mortgage of the water undertaking in respect of the water capital raised by them before the passing of this Act any sum or sums not exceeding in the whole (inclusive of the sums already borrowed by them on mortgage of such undertaking and outstanding at the date or respective dates on which the Company exercise the powers of this subsection) the sum of twenty thousand six hundred and twenty-one pounds. A.D. 1937.

(3) The Company may also subject to the provisions of this Act borrow on mortgage of the gas and water undertakings respectively in respect of any capital raised by them after the commencement of this Act as gas capital or water capital as the case may be any sum or sums not exceeding in the whole one-half of the amount (including premiums and allowing for discounts) which at the time of borrowing has been so raised and in the case of any capital raised by the issue of redeemable preference shares or stock has not been redeemed by paying off the shares or stock but no sum shall be borrowed in respect of any such capital until the Company have proved to a justice before he gives his certificate under section 40 of the Companies Clauses Consolidation Act 1845 that the whole of the amounts payable in respect of such capital together with the premiums (if any) realised on the sale thereof has been fully paid up.

20. The principal moneys secured by all mortgages granted by the Company in pursuance of the powers of any Act or Order before the date of this Order and subsisting at that date shall during the continuance of such mortgages have priority over the principal moneys secured by any mortgages granted by the Company after the date of this Order. Priority of principal moneys secured by existing mortgages.

21.—(1) Article 10 of the Dunstable Water Order 1926 is hereby repealed but without prejudice to any appointment heretofore made or to any proceedings pending at the passing of this Act. Appointment of receiver.

(2) The mortgagees of the water undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise

A.D. 1937. — the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall be not less than one-tenth of the total amount for the time being owing by the Company on mortgage of the water undertaking.

Debenture stock.

22. The Company may create and issue debenture stock charged upon their gas undertaking and their water undertaking respectively subject to the provisions of Part III of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all such debenture stock and of all mortgages of such undertakings respectively at any time after the passing of this Act created and issued or granted by the Company under any previous Act or Order or this Act or any subsequent Act or Order shall subject to the provisions of the subsequent Act or Order rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or Orders or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of mortgages and debenture stock over other debts.

23. All money raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and the property for the time being of the Company over all other claims on account of any debts incurred or engagements entered into by them after the date of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

Redeemable preference capital and debenture stock in

24.—(1) In this section unless the context otherwise requires—

“Stock” means and includes preference stock and debenture stock in the water capital;

“ Preference stock ” includes preference shares; A.D. 1937.

“ Issue ” includes re-issue;

“ Redeemable stock ” means any stock issued under the powers of this section so as to be redeemable; water
capital.

“ Redeemed stock ” means any redeemable stock which has been redeemed and is available for issue under the provisions of this section.

(2) Subject to the provisions of this section the directors may from time to time by virtue of this Act and without further or other sanction issue so as to be redeemable any stock created by the Company after the passing of this Act and any redeemed stock Provided that no redeemed stock shall be issued except for the purpose of effecting the redemption of redeemable stock under the provisions of this section unless the issue is authorised by a resolution of a general meeting of the Company.

(3) Redeemable stock may be redeemed either by paying off the stock or by issuing to the holder of the stock (subject to his consent) other stock in substitution therefor and for the purpose of raising money to pay off or of providing stock in substitution for any redeemable stock the Company may create new stock or the directors may issue any redeemed stock so as to be redeemable or irredeemable as they may think fit Provided that—

(a) no new stock shall be created nor shall any redeemed stock be issued so as to make the total amount of any particular class of stock exceed the amount of stock of that class which the Company are for the time being authorised to create except during any necessary interval between the creation or (in the case of redeemed stock) the issue of the stock and completion of the redemption of the redeemable stock for the purpose of redeeming which the stock of such particular class is proposed to be so created or issued; and

(b) during such interval as aforesaid the amount raised by means of any preference stock so

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created or issued shall not be deemed to be paid-up capital for the purposes of any enactment regulating the borrowing powers of the Company.

(4) The redemption of any preference stock issued so as to be redeemable shall not affect the validity of any mortgage or debenture stock of which the grant or issue by the Company was lawful in the circumstances existing at the date of such grant or issue.

(5) Redeemable stock shall bear such rate of dividend or interest (not exceeding any maximum rate prescribed in respect of the particular class of stock) and shall be redeemable at such time and in such manner and subject otherwise to such terms and conditions as the directors may before the issue thereof determine :

Provided that the terms and conditions of redemption upon which any redeemable stock is issued shall be stated in any offer by the Company of such stock for sale and in the certificate of such stock and no term or condition of redemption which is not so stated shall be binding upon the holder of the stock.

(6) The Company shall not redeem out of revenue any redeemable stock but any discount allowed on the issue or any premium payable on the redemption thereof may be written off out of revenue.

(7) Any preference stock issued solely in substitution for redeemable stock shall not be subject to the provisions of the section of this Act of which the marginal note is "New capital to be sold by auction or tender."

(8) Article 16 of the Dunstable Water Order 1926 is hereby repealed.

Minimum
holdings of
stock and
debenture
stock.

25.—(1) All ordinary and preference stock of the Company shall be issued and be held in amounts of one pound or a multiple of one pound and not otherwise and the Company shall not be under any obligation to register a transfer of any ordinary or preference stock which would make the holding of the transferor or transferee an amount other than one pound or a multiple of one pound.

(2) All debenture stock of the Company shall be issued and be held in amounts of five pounds or a multiple of five pounds and not otherwise and the

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Company shall not be under any obligation to register a transfer of any debenture stock which would make the holding of the transferor or transferee an amount other than five pounds or a multiple of five pounds. A.D. 1937.

(3) Notice of this enactment as far as applicable shall be stated in all certificates of ordinary and preference stock and debenture stock of the Company (as the case may be) issued after the date of the passing of this Act.

26. The Company shall not be bound to see to the execution of any trust whether express implied or constructive to which any shares or stock or debenture stock of the Company may be subject and the provisions of section 20 of the Companies Clauses Consolidation Act 1845 shall mutatis mutandis extend and apply to any shares or stock or debenture stock of the Company as if such shares or stock or debenture stock were shares to which that section applies. Company not bound to regard trusts.

27. Notwithstanding anything in section 13 of the Companies Clauses Consolidation Act 1845 or in any other enactment the Company shall not be under any obligation to issue a new debenture or mortgage bond or a new certificate of any shares or stock or debenture stock or a new warrant in respect of interest or dividend in lieu of any debenture bond certificate or warrant lost or destroyed or alleged to be lost or destroyed until they have received from the person to whom such new debenture bond certificate or warrant is to be issued such indemnity as the directors may require against any and every claim or expense which may be made against the Company or which the Company may incur in respect of such lost or destroyed debenture bond certificate or warrant or the debenture mortgage share stock debenture stock dividend or interest represented thereby. Indemnity before issue of substituted certificates &c.

28. All moneys raised under this Act shall be applied to the purposes of the gas undertaking or of the water undertaking as the case may be to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend. Application of moneys.

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LIMITS OF SUPPLY.

Extension
of limits
for supply
of gas.

29.—(1) On and after the passing of this Act the limits of the Company for the supply of gas shall extend to and include those parts of the borough of Dunstable in the county of Bedford which prior to the coming into force of the South Bedfordshire Order 1933 respectively formed part of the parish of Kensworth or of the parish of Caddington both in the rural district of Luton except that part of the said borough at or near Skimpot Farm formerly part of the said parish of Caddington and lying to the east of the borough boundary as existing prior to the coming into force of the said Order and all powers and obligations of the Luton Gas Company with reference to the supply of gas in such extended limits shall cease and determine.

(2) On and after the passing of this Act the limits of the Company for the supply of gas shall extend to and include—

In the county of Bedford—

The parishes of Eaton Bray and Tilsworth in the rural district of Luton.

(3) Subject to the provisions of this Act the Company shall have and may exercise within the added limits all and the like powers rights privileges and authorities and be subject to all and the like duties and obligations with reference to the supply of gas as they now have and are subject to within their existing limits.

Exclusion
from limits
of supply of
portion of
borough of
Luton.

30. On and after the passing of this Act that part of the borough of Luton which prior to the coming into force of the South Bedfordshire Order 1933 formed part of the parish of Houghton Regis in the rural district of Luton shall cease to form part of the limits of the Company for the supply of gas and water.

LANDS AND WORKS.

Confirma-
tion of
purchase of
land and
power to

31.—(1) The purchase by the Company of the lands described in the Second Schedule to this Act and of the land shown on the deposited plan is hereby sanctioned and confirmed.

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(2) The Company may for the purposes of their gas undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the schedule to the Dunstable Gas and Water Act 1871 as amended by the Dunstable Gas Order 1936 in the schedule to the Dunstable Gas Order 1936 and in the Second Schedule to this Act any lands and hereditaments which the Company may require for the purposes of their gas works and undertaking not exceeding in the whole ten acres but the Company shall not create or permit a nuisance on such lands and no lands shall be used by the Company for manufacturing gas or residual products except the lands described in the said schedules.

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—
purchase
lands by
agreement.

(3) The Company may in addition to the lands acquired by them for the purposes of their water undertaking under the powers of the Act of 1912 or of this Act purchase take on lease or acquire (by agreement but not otherwise) for any of the purposes of their said water undertaking any additional quantity of land not exceeding in the whole ten acres or any easements or right (not being an easement right or privilege of water in which persons other than the grantors have an interest) in or over such additional lands provided that so long as any such lands are held by them the Company shall not on any such lands create or permit any nuisance or erect or authorise or permit the erection thereon of any buildings other than buildings connected with or necessary for their undertaking.

32. Subject to the provisions of this Act the Company may upon the lands described in the Second Schedule to this Act erect maintain alter improve and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas in the gas limits and may also upon the said lands work up and convert the residual products arising directly or indirectly from the manufacture of gas by them or purchased by them under the powers conferred by section 4 of the Gas Undertakings Act 1929 and for this purpose the Company may purchase from any source and use such material as is required to work up and convert any such residual products.

Power to
maintain
gasworks
and convert
residual
products.

19 & 20
Geo. 5. c. 24.

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—
Construc-
tion of
waterworks.

33.—(1) Subject to the provisions of this Act the Company may in the borough of Dunstable in the county of Bedford and in the lines or situation and in upon or under the lands delineated on the deposited plan and described in the deposited book of reference and according to the levels shown on the deposited section make and maintain the work hereinafter in this section described and the Company may also enter upon take use and hold all or any of the lands delineated on the said plan and described in the said book of reference which may be required for the purpose of such work or for any other purpose connected with the water undertaking The work hereinbefore in this section referred to is—

A service reservoir to be situate in the enclosure numbered in the said borough 42 on the 1/2500 Ordnance map Bedfordshire sheet XXXII.7 (edition of 1924).

(2) In addition to the foregoing works the Company may upon the lands delineated on the deposited plan make and maintain all such buildings machinery works and apparatus of whatever character as may be necessary or convenient in connection with or subsidiary to the before-mentioned work but nothing in this subsection shall exonerate the Company from any action indictment or other proceeding in the event of any nuisance being caused or permitted by them.

Power to
deviate.

34. In the construction of the work authorised by this Act the Company may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plan and they may deviate vertically from the levels shown on the deposited section to any extent not exceeding five feet upwards and any extent downwards :

Provided that the Company shall not construct any embankment or wall of the said reservoir of a greater height above the general surface of the ground than that shown on the deposited section in respect of the corresponding embankment or wall and five feet in addition.

Period for
completion
of works.

35. If the works authorised by this Act and shown on the deposited plans and sections or any part or parts thereof are not completed within seven years

from the passing of this Act then on the expiration of that period the powers granted by this Act for making those works shall cease as to such of them or so much thereof respectively as are not then completed. Provided that the Company may extend enlarge alter reconstruct renew or remove any of their works and plant. A.D. 1937.
—

36. Subject to the provisions of this Act the waterworks to be constructed by the Company under the authority of this Act shall be deemed to be part of the water undertaking. Works to form part of undertaking.

37. The Company may stop up and discontinue the public footpath in the borough of Dunstable in the county of Bedford which crosses the land numbered 1 on the deposited plan. Power to divert footpath.

Such stopping up shall not take place until the Company shall have constructed a new footpath along the south-eastern boundary of the said land numbered 1 and until two justices shall have certified that such new footpath has been completed to their satisfaction and is open for public use.

As from the date of the said certificate all rights of way over or along the existing footpath shall be extinguished and the Company may appropriate and use for the purposes of the water undertaking the site of the footpath stopped up so far as the same is bounded on both sides by lands of the Company :

Provided that the Company shall make full compensation to all parties interested in respect of any private right of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

38. Subject to the provisions of this Act the Company may in the borough of Dunstable in the county of Bedford make and maintain in the lines and situation and upon the lands delineated upon the deposited plan and described in the deposited book of reference and according to the levels shown on the deposited section the works hereinafter described with all proper works and conveniences connected therewith and may enter upon take and use such of the lands Power to make sidings.

A.D. 1937. — delineated on the deposited plan and described in the deposited book of reference as may be required for that purpose The railway sidings hereinbefore referred to and authorised by this Act are—

A siding (Work No. 1) 9 chains or thereabouts in length commencing by a junction with the Dunstable branch railway of the London Midland and Scottish Railway (hereinafter called “the railway company”) at a point 1·5 chains or thereabouts from the centre of Brewershill Road measured along the rails of such branch railway in a westerly direction and terminating in the goods yard of the said railway company at a point adjoining the eastern corner of the Company’s retort house;

A siding (Work No. 2) 3 chains or thereabouts in length commencing by a junction with the siding (Work No. 1) at a point 4 chains or thereabouts from its commencement and terminating in the said goods yard at a point 30 feet or thereabouts measured in a north-easterly direction from the north-western corner of the said retort house.

Power to cross road on level.

39.—(1) Subject to the provisions of the Railways Clauses Consolidation Act 1845 and in Part I (relating to the construction of a railway) of the Railways Clauses Act 1863 contained in reference to the crossing of roads on the level the Company may in the construction of the siding (Work No. 1) carry the same with a single line across and on the level of the road next hereinafter mentioned (that is to say):—

No. on deposited plan.	Parish.	Description of road.
2	Dunstable	Brewershill Road.

(2) The Company shall erect and maintain at all times proper and sufficient gates across the siding (Work No. 1) where such siding crosses Brewershill Road and such gates shall be kept constantly closed across the siding except during the time when trucks

are being moved along the siding across the said road and shall be of sufficient length to allow when so closed a clear roadway of forty feet The provisions of this subsection shall operate in lieu of and notwithstanding anything contained in Part I of the Railway Clauses Act 1863 with reference to level crossings. A.D. 1937.
—

40. The following provisions for the protection of the London Midland and Scottish Railway Company (in this section called "the railway company") shall unless otherwise agreed between the Company and the railway company apply and have effect:— As to works on lands of London Midland and Scottish Railway Company.

(1) Notwithstanding anything contained in this Part of this Act or shown upon the deposited plan and section the Company shall not enter upon take or use any lands of the railway company or construct any works upon or acquire any right in or easement over such lands or any part thereof save with the consent of the railway company under their common seal:

(2) All works to be constructed (with such consent as aforesaid) upon the lands of the railway company or which may affect the property of the railway company shall be constructed at the expense of the Company in accordance with such plans and specifications in such manner and upon such terms in every respect as may be agreed between the Company and the railway company and shall be maintained at the expense of the Company.

41. Notwithstanding anything in this Act contained— As to use of sidings.

(a) the Company shall not be deemed to be a railway company;

(b) the railway sidings by this Act authorised shall not be deemed to be railways but shall be deemed to be and shall be private sidings or private branch railways;

within the meaning of the Railway and Canal Traffic Acts 1854 to 1894.

A.D. 1937.

MISCELLANEOUS.

For pro-
tection of
Bedford-
shire
County
Council.

42.—(1) The following provisions for the protection of the county council of the administrative county of Bedford (in this section referred to as “the county council”) shall unless otherwise agreed between the Company and the county council apply and have effect with respect to the exercise of any of the powers of the Company (that is to say):—

- (a) All new mains pipes and works (not being replacements of existing mains pipes and works or consumers’ service pipes) to be laid in or along any road or bridge vested in the county council shall be laid in such position in or at the side thereof as the county council in writing under the hand of the surveyor of the county council (in this section referred to as “the surveyor”) may reasonably direct;
- (b) The notice required by section 8 of the Gasworks Clauses Act 1847 or by section 30 of the Waterworks Clauses Act 1847 (as the case may be) with respect to the breaking up of streets shall as regards any such road or bridge as aforesaid be not less than seven instead of three days except in cases of laying down connecting or repairing consumers’ service pipes in which case three days’ notice shall be given and except in cases of leakage bursting or other emergency when notice shall be given so soon as reasonably practicable;
- (c) The plan required by section 9 of the Gasworks Clauses Act 1847 or by section 31 of the Waterworks Clauses Act 1847 (as the case may be) shall as regards any such road or bridge as aforesaid be on a scale of not less than twenty-five inches to the mile and such plan shall be drawn to suitable scales to show clearly the proposed works and their proposed position and depth and shall be delivered to the county council or the surveyor by the Company not less than fourteen days before the Company begin to execute the works;
- (d) All works shall be so executed by the Company as not to stop or (so far as reasonably

practicable) impede or interfere with the traffic on any such road or bridge as aforesaid and the Company shall not break up at any one time an unreasonable length of such road; A.D. 1937.
—

- (e) Nothing in this Act shall authorise the Company to interfere with the structure of any bridge and the Company shall not except in cases of leakage bursting or other emergency without the consent in writing of the county council (which consent shall not be unreasonably withheld) open or break up the roadway over any bridge vested in or repairable by the county council and shall if so reasonably required by the county council attach any main or pipe which they may wish to carry across such bridge under or on the outside of such bridge in such manner as the county council may reasonably direct;
- (f) If for the purpose of the reconstruction alteration improvement or diversion by the county council of any such road as aforesaid or the rebuilding alteration widening repair or raising by the county council of any such bridge it shall be reasonably necessary to take up alter the level or position of or divert any main pipe or other work of the Company laid or placed in under over or along any such road or bridge as aforesaid the Company may and if reasonably required by the county council in writing under the hand of their clerk shall either take up and replace in the same or some other position or alter the level or position of or divert such main pipe or work under the superintendence of the county council in such manner and to such extent as may be agreed between the county council and the Company or as failing such agreement shall be determined by arbitration as hereinafter in this section provided or (where reasonably expedient) lay or place as may be agreed or determined as aforesaid new mains pipes or other works in lieu of the existing main pipe or work and the cost of such taking up replacement alteration or diversion or of the

A.D. 1937.
—

provision and laying or placing of such new mains pipes or works—

(i) if the main pipe or other work was laid after the passing of this Act but otherwise than in accordance with any directions given by the county council shall be borne and paid by the Company;

(ii) if the main pipe or other work was laid in compliance with such directions as aforesaid or if the county council shall fail to give such directions with respect to the laying of such main pipe or other work shall be repaid by the county council to the Company;

(g) If the Company in the execution of any works in or along any such road or bridge as aforesaid shall cause any damage injury or disturbance to the same and shall neglect or refuse to make good all such damage injury or disturbance in accordance with the provisions of the Gasworks Clauses Act 1847 or of the Waterworks Clauses Act 1847 (as the case may be) it shall be lawful for the county council after fourteen days' notice to the Company of their neglect or refusal and of the works which the county council propose to execute to do all works necessary for making good all such damage injury or disturbance and the Company shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works Any difference as to the reasonableness of such works or of such costs charges and expenses shall be determined by arbitration as hereinafter in this section provided Any sums becoming payable to the county council in pursuance of this or the preceding paragraph shall be a debt due from the Company to the county council and recoverable as such as soon as the amount thereof shall have been ascertained by agreement or arbitration;

(h) No claim shall be made against the county council for damage to any main pipe or other

work of the Company unless the Company on the discovery of such damage shall have given written notice thereof as soon as practicable to the surveyor and allowed him a reasonable opportunity and facilities for inspecting such work; A.D. 1937.
—

- (i) Any difference by this section required to be determined by arbitration shall be determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Acts 1889 and 1934 shall apply to any such determination.

52 & 53 Vict.
c. 49.
24 & 25 Geo. 5.
c. 14.

(2) Section 33 (For protection of the Bedfordshire County Council) of the Dunstable Gas Order 1926 and section 22 (For protection of Bedfordshire County Council) of the Dunstable Water Order 1926 are hereby repealed.

43. Section 69 of the Act of 1912 is hereby repealed and from and after the passing of this Act the number of directors of the Company shall be not more than seven or less than five. Number of directors.

44. Section 22 of the Act of 1871 is hereby repealed and as from the passing of this Act the qualification of a director shall be the holding in his own right of one hundred ordinary shares of the Company. Qualification of directors.

45.—(1) The directors may appoint one or more of their body to be managing director or managing directors either for a fixed term or without limitation as to time and may remove or dismiss him or them from office and appoint another or others in his or their place or places. As to appointment of managing directors.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

A.D. 1937.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of those modes.

(4) The directors may entrust to and confer upon a managing director such of the powers exerciseable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

(5) Any managing director appointed under the powers of this Act shall not so long as he receives remuneration as a managing director be deemed a director for the purposes of directors' remuneration.

As to
streets
forming
boundary
of limits of
supply.

46.—(1) Where the gas limits or the water limits are bounded by or abut upon any street or part of a street wholly or for part of its width outside those limits the Company may for the purpose of supplying gas or water (as the case may be) to the owner or occupier of any premises within their limits exercise with respect to the whole width of the street or part of the street the like powers of breaking up the street for the purposes of laying maintaining inspecting repairing and renewing pipes and works as are exerciseable by them with respect to streets within their limits and subject to the like conditions.

(2) Nothing in this section shall entitle or require the Company to supply gas or water to the owner or occupier of any premises outside the gas limits or the water limits (as the case may be).

(3) In this section "street" includes any square court or alley highway lane road thoroughfare or public passage or place.

Supply to
certain
classes of
premises.

47.—(1) The Company shall not be bound to supply with water otherwise than by meter—

- (a) any building used by an occupier as a dwelling-house whereof a part is used by the same occupier for any trade or manufacturing purpose for which water is required; or
- (b) any public institution; or
- (c) any hospital sanatorium school club hostel assembly hall place of public entertainment

restaurant hotel or licensed premises within the meaning of that expression as used in the Licensing (Consolidation) Act 1910; or

A.D. 1937.

—
10 Edw. 7.
& 1 Geo. 5.
c. 24.

(d) any boarding-house capable of accommodating twelve or more persons including the persons usually resident therein.

(2) Where a supply of water to a farmhouse is used for farming purposes the Company may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Company to refuse a supply of water for domestic purposes to a farmhouse at the authorised rates.

(3) The minimum quarterly charge (exclusive of meter rent) for a supply of water by meter to any of the premises in this section mentioned shall be one-fourth of the annual amount which would be payable according to the scale for the time being in force for a supply for domestic purposes to a dwelling-house of the same net annual value.

48. If the Company commence proceedings for the summary recovery of any sum due for a supply of gas any other sum due or payable to the Company by the same consumer in respect of the sale or hire of any apparatus or fittings supplied or provided by them for or in connection with the consumption or use of gas or in respect of the provision of materials and work in connection therewith or the fixing setting up repairing altering maintaining or removal thereof may be included in the same summons and may be recovered summarily as a civil debt together with the sum due for the supply of gas provided that the sum so included as aforesaid does not exceed twenty pounds in any one summons.

As to
recovery of
sums due
for fittings
&c.

49. All the costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

Costs of
Act.

FIRST SCHEDULE.

[Ch. lxiii.]

[1 EDW. 8. &
1 GEO. 6.]

STATEMENT OF SHARE CAPITAL.

Act or Order authorising the raising of capital.	Description of capital.	Maximum rate of dividend.	Number of shares issued.	Nominal amount of each share.	Total paid up.	Premium capital received.	Remaining to be issued.	Total amount authorised.
Dunstable Gas and Water Act 1871	A ordinary shares ... B " " " C " " " C preference shares C " " " New preference shares	10 per centum 5 " " 7 " " 5 " " 6 " " 7½ " "	1,000 1,000 250 702 298 250	£ 10 2 10 10 10 10	£ 10,000 2,000 2,500 } 7,020 } 2,980 } 2,500 }	£ 10,000 2,000 12,500	£ s. d. 	£ 10,000 2,000 12,500
Dunstable Gas and Water Act 1912 and Dunstable Gas and Water Company (Capital Issues) Consent 1920.	" " " " New preference shares	6 " " 5 " " 7 " "	733 1,384 300	10 10 10	7,330 13,840 3,000 }	10,000	£ s. d. 170 0 0	10,000
Dunstable Gas and Water Act 1912	" " " " New preference shares	6 " "	733	10	7,330	10,000	£ s. d. 170 0 0	10,000
Dunstable Gas Order 1926	C ordinary (1929) shares ...	5 " " 7 " "	1,384 300	10 10	13,840 3,000 }	20,000	£ s. d. 3,153 0 0	20,000
Dunstable Gas and Water Act 1871	Original ordinary shares ...	10 per centum	1,000	10	10,000	10,000	£ s. d. 3,323 0 0	54,500
" " " " 1912	Additional ordinary shares	7 " "	700	10	7,000	10,000	£ s. d. 3,323 0 0	54,500
Dunstable Gas and Water Act 1912 and Dunstable Gas and Water Company (Capital Issues) Consent 1920.	Preference shares ...	7½ " "	50	10	500	10,000	£ s. d. 3,323 0 0	54,500
Dunstable Gas and Water Act 1912	" " " "	6 " "	498	10	4,980	10,000	£ s. d. 2,511 13 2	15,000
Dunstable Water Order 1926	" " " "	5 " "	1,146	10	11,460	15,000	£ s. d. 3,545 10 0	15,000
			3,394		33,940	40,000	£ s. d. 6,057 3 2	40,000

[1 EDW. 8. &
1 GEO. 6.]

*Dunstable Gas and Water
Act, 1937.*

[Ch. lxiii.]

STATEMENT OF LOAN CAPITAL.

Description of loan.	Rate of interest.	Total amount - borrowed.	Remaining to be borrowed.	Total amount authorised.
CHARGED UPON GAS UNDERTAKING.				
Redeemable debentures	4½ per centum	£ 600	£ 10,500	£ 27,250
“	6 “	12,150		
Debenture stock	4 “	4,000		
CHARGED UPON WATER UNDERTAKING.				
Mortgage	4 per centum	4,500	10,500	20,000
Redeemable debentures	6 “	5,000		

A.D. 1937.

A.D. 1937.

SECOND SCHEDULE.

LANDS FOR THE MANUFACTURE AND STORAGE OF GAS.

A piece of land situate in the borough of Dunstable in the county of Bedford containing 3.7 acres or thereabouts and forming part of the enclosure numbered 88 on the 1/2500 Ordnance map Bedfordshire sheet XXXII.2 (edition of 1924) and bounded on the north by the London Midland and Scottish Railway on the west and south-west by other parts of the said enclosure numbered 88 and on the south-east by Brewershill Road.

A piece of land situate in the said borough containing 4 acres or thereabouts and forming part of the enclosure numbered 30 on the said Ordnance map and bounded on the north-east by the existing gasworks of the Company on the north-west by Brewershill Road aforesaid and on the south-west and south-east by other parts of the said enclosure numbered 30.

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